

Montana Code Annotated 2023

TITLE 81. LIVESTOCK

CHAPTER 30. PROTECTION OF FARM ANIMALS AND RESEARCH FACILITIES

Part 1. Farm Animal and Research Facility Protection Act

Unlawful Acts

81-30-103. Unlawful acts. (1) A person who does not have the effective consent of the owner may not acquire or otherwise exercise control over an animal facility, an animal from an animal facility, or other property from an animal facility with the intent to deprive the owner of the facility, animal, or property or to damage the enterprise conducted at the animal facility.

(2) A person who does not have the effective consent of the owner and who intends to damage the enterprise conducted at an animal facility may not:

- (a) damage or destroy an animal facility or an animal or property in or on the premises of an animal facility;
 - (b) enter an animal facility that is at the time closed to the public with the intent to commit an act prohibited by this chapter;
 - (c) remain concealed in an animal facility with the intent to commit an act prohibited by this chapter;
 - (d) enter an animal facility and commit or attempt to commit an act prohibited by this chapter;
 - (e) enter an animal facility to take pictures by photograph, video camera, or other means with the intent to commit criminal defamation; or
 - (f) enter or remain on the premises of an animal facility if the person:
 - (i) had notice that the entry was forbidden; or
 - (ii) received notice to depart but failed to do so.
- (3) The provisions of this chapter do not apply to lawful activities of a:
- (a) government agency or its employees who are carrying out their duties under law or to lawful activities of a financial institution or other secured party; and
 - (b) humane animal treatment shelter or its employees whose primary purpose is the bona fide control or humane care of animals or the enforcement of **45-8-211**.

History: En. Sec. 3, Ch. 205, L. 1991.